CCRB INVESTIGATIVE RECOMMENDATION

Investigator:	Team:	CCRB Case #:	☑ Force ☑ Discourt. ☐ U.S.
Lily Carayannis	Team # 1	201405826	☑ Abuse ☐ O.L. ☐ Injury

Incident Date(s)	Location of Incident:	18 Mo. SOL	Precinct:
Wednesday, 05/28/2014 10:20 PM	West 238th Street and Orloff Avenue	11/28/2015	50

Date/Time CV Reported	CV Reported At:	How CV Reported:	Date/Time Received at CCRB
Thu, 06/12/2014 4:39 PM	CCRB	Phone	Thu, 06/12/2014 4:39 PM

Complainant/Victim	Type	Home Address
[redacted]	[redacted]	[redacted]

Subject Officer(s)	Shield	TaxID	Command
1. POM Brendan Reilly	09343	952155	050 PCT
2. POM Corey Maguire	06103	951950	050 PCT
3. POF Meribeth Alix	20994	951491	050 PCT
4. POM Viet Dang	19610	951653	050 PCT
5. LT John Foder	00000	903955	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Tiffany Batista	01439	926552	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brendan Reilly	Force: PO Brendan Reilly used physical force against § 87(2)(b) [redacted]	A . Exonerated
B . POM Corey Maguire	Force: PO Corey Maguire used pepper spray against § 87(2)(b) [redacted]	B . Exonerated
C . POM Corey Maguire	Force: PO Corey Maguire used physical force against § 87(2)(b) [redacted]	C . Exonerated
D . POM Corey Maguire	Discourtesy: PO Corey Maguire spoke discourteously to § 87(2)(b) [redacted]	D . Unsubstantiated
E . LT John Foder	Abuse: LT John Foder authorized the strip search of § 87(2)(b) [redacted]	E . Exonerated
F . POF Meribeth Alix	Discourtesy: PO Meribeth Alix spoke discourteously to § 87(2)(b) [redacted]	F . Unsubstantiated
§ 87(4-b) § 87(2)(g) [redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]
[redacted]	[redacted]	[redacted]

Case Summary

On June 12, 2014, at approximately 4:39 p.m., § 87(2)(b) filed the following complaint over the telephone with the CCRB (encl. C1-2).

On May 28, 2014, at approximately 10:20 p.m., § 87(2)(b) was arrested by PO Brendan Reilly and PO Corey Maguire, both from the 50th Precinct, for § 87(2)(b). As a result of the interaction, the following allegations arose:

Allegation A—Force: PO Brendan Reilly used physical force against § 87(2)(b)
Allegation B—Force: PO Corey Maguire used pepper spray against § 87(2)(b)
Allegation C—Force: PO Corey Maguire used physical force against § 87(2)(b)
Allegation E—Abuse of Authority: LT John Foder authorized the strip-search of § 87(2)(b)

§ 87(2)(g) It is therefore recommended that **Allegations A**, **B**, **C,** and **E** be **exonerated.**

Allegation D—Discourtesy: PO Corey Maguire spoke discourteously to § 87(2)(b)
Allegation F—Discourtesy: PO Meribeth Alix spoke discourteously to § 87(2)(b)

§ 87(2)(g) It is therefore recommended that **Allegations D** and **F** be **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

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This case was not eligible for mediation.

Results of Investigation

Civilian Statements

Complainant/victim: § 87(2)(b)

- § 87(2)(b) *female, white,* § 87(2)(b)*, brown hair, and brown eyes.*
- § 87(2)(b)

Statements to Medical Providers

CCRB – Confidential

§ 87(2)(a) PHL § 18(6) [redacted]

CCRB Statement:

§ 87(2)(b) provided a telephone statement when she first filed her complaint and she was interviewed at the CCRB on June 25, 2014 (encl. C3-8). § 87(2)(g) [redacted]

On May 28, 2014, at approximately 10:20 p.m., § 87(2)(b) was sleeping in her vehicle, which was parked in front of a fire hydrant at the intersection of Orloff Avenue and West 238th Street in the Bronx. Prior to this, at approximately 8:00 p.m. § 87(2)(b) had dropped off a friend who lived in the area. § 87(2)(b) was driving a rental vehicle, which was a red 2013 Toyota Camry. The vehicle was rented from Hertz and it did not have any mechanical issues or broken lights. She had numerous clothing items, suit cases, and a locked safe, which contained numerous empty glass vials. She had hallucinogenic mushrooms in the glove compartment and a jewelry bag containing a small amount of methamphetamine in a small Ziploc bag and other empty bags. The jewelry bag was approximately three inches by three inches, was black and opaque, made of silk, and had a draw string on top which tied. She left her vehicle running with her windows half down. She called, but did not reach, her family, so she texted them and waited for a return call. As she waited, she fell asleep in the driver's seat, while holding her phone and jewelry bag. § 87(2)(b) had not consumed alcohol or drugs that day.

When § 87(2)(b) awoke she observed two officers, PO Brendan Reilly and PO Corey Maguire, standing next to the driver's side of her vehicle, knocking on the window. A marked police van was stopped next to her vehicle. One of the officers, she could not recall who, informed § 87(2)(b) that her vehicle smelled of marijuana and alcohol. § 87(2)(b) responded that she does not drink and did not smoke that night. PO Reilly, identified by the investigation and described as a 5'6" tall white male with blond hair and an average build, asked for her license. § 87(2)(b) removed her license from her purse and handed it to PO Reilly. PO Reilly asked her what was in the bag on her lap. She said it was a jewelry bag. PO Reilly asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) refused, asking why she needed to step out of her vehicle. She shoved the jewelry bag into her bra. PO Reilly opened the driver's side door and grabbed § 87(2)(b)s left forearm with both hands. He pulled on her arm to attempt to remove her from the vehicle. § 87(2)(b) pulled her arm toward her body in an attempt to get the officer to let her go. PO Reilly twisted her arm. At the same time she began yelling, "Let me go. Leave me alone."

PO Maguire, identified by the investigation and described as a 5'9" white male with black hair and an average build, took PO Reilly's place and PO Reilly went around the vehicle to the passenger side. PO Maguire reached across her body to remove her seat belt with his left hand, while he held her left arm with his right hand. § 87(2)(b) did not want to exit the vehicle because she did not believe that she was required to step out of the vehicle. As PO Maguire grabbed her arm, § 87(2)(b) began pulling her arms away with "all her might." She screamed at the officer to get off of her and to leave her alone numerous times. PO Maguire, while reaching

toward her seatbelt, brushed his arm along the ridge of her teeth as she was screaming. § 87(2)(b) did not bite PO Maguire. PO Maguire said, "Oh, you are going to bite me now." PO Reilly opened her passenger side door and grabbed her right arm. § 87(2)(b) struggled with both officers to get them to release their grasp of her arms. She pulled her arms inward toward her body and then outward to push the officers away from her. The entire time she was screaming to let her go. The officers were saying something, but § 87(2)(b) could not recall what they were saying. At one point one of the officers turned off her vehicle.

§ 87(2)(b) was able to turn her vehicle back on shortly thereafter, but quickly turned it off. PO Reilly handcuffed § 87(2)(b)s right hand, but § 87(2)(b) was able to pull away from his grasp. She handcuffed herself to the steering wheel of the vehicle and she held onto it. PO Maguire pointed a can of pepper spray at her and said that she would be pepper sprayed if she did not let go of the steering wheel. § 87(2)(b) put her sweater over her eyes when she saw the pepper spray canister. She successfully blocked the pepper spray. PO Reilly was still somewhere on the passenger side of the vehicle. PO Maguire sprayed her with pepper spray again, and again she blocked it, but this time the drip of the pepper spray got into her eyes and they began to sting. PO Reilly removed the handcuffs from § 87(2)(b) by removing her hand from the steering wheel and PO Maguire began pulling her left arm out of the vehicle bending it backward on the door frame toward the back of the vehicle. § 87(2)(b) continued to pull her arm away from PO Maguire. PO Maguire pepper sprayed § 87(2)(b) a third time, but this time she did not block the pepper spray. She closed her eyes and attempted to open them numerous times. She continued to pull her hands away from the officers and hold the steering wheel. PO Maguire punched § 87(2)(b) with a closed fist on her left temple and her left cheek. She believed the officer was holding the can of pepper spray when he punched her, as the punch felt very hard. § 87(2)(b) did not see the officer punch her. § 87(2)(b) felt dizzy after being punched and her body hurt from the struggle. She was taken out of the vehicle and PO Maguire handcuffed her.

PO Meribeth Alix, who was identified by the investigation and was described as a 5'4" tall Hispanic female with black hair and an average build, and PO Viet Dang, who was identified by the investigation and who was described as a 5'8" tall white male with an average build, arrived in a marked patrol vehicle at this time. PO Alix was the passenger of the vehicle and PO Dang was in the driver's seat.

PO Maguire said, "Shut the fuck up. We are the cops. What are you going to do? You bit me." He also called her a junkie.

§ 87(2)(b) was taken to the 50th Precinct stationhouse by PO Alix and PO Dang. At the stationhouse, § 87(2)(b) was taken to the holding cells. There were no other prisoners or officers in the holding cell. PO Alix told her to remove all of her clothes, which she did. She was completely naked and alone with PO Alix at the time. PO Alix told her to turn around and bend over, which she did. PO Alix then told her to put her clothes back on. She told § 87(2)(b) "I don't want to hear you in there. Just keep calm, keep quiet, I do not want to hear your fucking mouth." § 87(2)(b) was placed in a holding cell. EMTs (one male and one female) arrived for her and they sterilized her eyes. She wanted to go to the hospital and the EMTs waited while everything was being prepared. An officer told her that her processing would take longer if she went to the hospital. § 87(2)(b) wanted to leave police custody as soon as possible so she declined the trip to the hospital.

After the EMTs left, PO Reilly and PO Maguire returned to ask her questions regarding the vehicle. They asked her what was inside that safe of the vehicle and how to gain access to the safe. She did not provide this information, but she assumed they broke into the safe as she was charged with § 87(2)(b) She was also charged with § 87(2)(b), which is

how she ascertained that officers had gained access to her glove compartment. § 87(2)(b) was also charged with § 87(2)(b) that were in the jewelry bag.

NYPD Statements:

Subject Officer: PO COREY MAGUIRE

- § 87(2)(b), *male, white,* § 87(2)(b)*., black hair, and brown eyes.*
- *On May 28, 2014, PO Maguire was assigned to housing conditions with PO Reilly from 3:00 p.m. to 3:05 a.m. on May 29, 2014. PO Maguire was dressed in uniform and was assigned to a marked van.*

Memo Book

At 10:20 p.m., PO Maguire performed a car stop at West 238th Street and Orloff Avenue in the Bronx. § 87(2)(b) appeared to be asleep behind the wheel. One glass pipe was visible on the floor board by her right foot. PO Maguire asked § 87(2)(b) to step out of the vehicle and she refused to comply. She removed items from her crotch area and shoved them in her bra on the left side. At 10:22 p.m. PO Maguire requested a female officer to assist. At 10: 23 p.m., § 87(2)(b) refused to exit the vehicle after multiple orders. PO Maguire attempted to remove her, but she would not let go of the steering wheel. She did not comply with orders to stop resisting and exit the vehicle. § 87(2)(b) attempted to bite PO Maguire's hand and arm multiple times. She attempted to close the door to the vehicle and drive away (encl. E1-4).

CCRB Statement

PO Maguire was interviewed at the CCRB on October 22, 2014 (encl. E5-6).

On May 28, 2014, at approximately 10:20 p.m., PO Maguire was driving the marked patrol vehicle with PO Reilly in the passenger seat. As they were driving, PO Maguire observed § 87(2)(b) vehicle parked in front of a fire hydrant. Her vehicle was parked out of the parking lane and partially in the traffic lane. PO Maguire pulled the van parallel with § 87(2)(b)s vehicle, which was running. PO Maguire approached the passenger side of § 87(2)(b)s vehicle and PO Reilly approached the driver's side with the intention of determining whether she needed assistance. Both front windows were open. PO Maguire observed a long thin glass pipe with a bulbous top on the floorboard near her feet. PO Reilly asked § 87(2)(b) whose eyes were closed, to step out of the vehicle. § 87(2)(b) said, "No," and opened her eyes. PO Maguire walked to the driver's side of the vehicle. § 87(2)(b) grabbed a brown fabric bag and shoved it in her bra. She then grabbed the gear shift of her vehicle. PO Maguire believed that § 87(2)(b) was attempting to drive away. PO Reilly opened her driver's side door and PO Maguire turned off her vehicle. As he did this § 87(2)(b) bit his arm. PO Maguire grabbed § 87(2)(b)s left arm and attempted to pull her out of the vehicle. PO Reilly went to the passenger side of the vehicle to push her out of the vehicle. § 87(2)(b) continued to attempt to bite PO Maguire. She grabbed onto her steering wheel and placed her foot on the frame of the car to resist being removed. PO Maguire told her that she was under arrest. At one point, PO Reilly handcuffed § 87(2)(b) right wrist and she handcuffed herself to the steering wheel. PO Maguire pepper sprayed her eyes. § 87(2)(b) blocked the pepper spray with her shirt and continued to resist. He could not recall if she handcuffed herself to the steering wheel before or after she was pepper sprayed. He did not recall how many times he pepper-sprayed § 87(2)(b) At one point, the handcuffs were removed from the steering wheel, but he did not know when or how. At one point in the struggle, PO Maguire called for a female officer and for assistance as he knew that she had shoved something in her bra.

PO Maguire was able to remove § 87(2)(b) from the vehicle. He did not punch her at any point and he did not use any additional force beyond the pepper spray and pulling her. He did not know what caused § 87(2)(b) to stop resisting, but he assumed that she was tired. § 87(2)(b) fell to the ground when he pulled her out of the vehicle. PO Maguire handcuffed her alone. Shortly after he handcuffed her, PO Alix and PO Dang arrived at the location. Neither PO Alix nor PO Dang assisted in handcuffing her. PO Maguire told PO Alix that § 87(2)(b) had hidden something in her bra. PO Alix frisked and searched § 87(2)(b) and removed the item from her bra. Inside the brown bag was a clear plastic bag of methamphetamines.

PO Maguire transported § 87(2)(b) back to the stationhouse alone. PO Reilly transported § 87(2)(b) vehicle to the stationhouse. PO Maguire took § 87(2)(b) to the desk at the stationhouse. He did not recall who was at the desk. He reviewed the Command Log and acknowledged seeing LT Foder's signature on the arrest stamp, but he did not recall LT Foder at the desk. PO Maguire did not recall the conversation that he had with the desk officer beyond that § 87(2)(b) was under arrest for § 87(2)(b) and that he had to pepper spray § 87(2)(b) PO Maguire did not recall who lodged § 87(2)(b) in the holding cell. PO Maguire did not recall hearing or seeing that § 87(2)(b) was strip-searched. PO Maguire was present when EMS arrived and flushed § 87(2)(b) s eyes with sterilized water. Beyond irritated eyes, he did not observe any injuries on § 87(2)(b) PO Maguire and PO Reilly searched § 87(2)(b) s car as they were vouchering it. Inside the vehicle they found a number of narcotics (see memo book). There was a safe in the vehicle, but PO Maguire believed that the safe was unlocked. PO Maguire and PO Reilly searched the safe and discovered numerous empty vials. Hertz was notified that the vehicle was in police custody and Hertz officials picked up the vehicle. PO Maguire did not say, nor did he hear said, "Shut the fuck up." PO Maguire did not say and did not hear said, "I do not want to hear your fucking mouth."

<u>Subject Officer:</u> PO BRENDAN REILLY

- § 87(2)(b) *, male, white,* § 87(2)(b) *., blond hair, and blue eyes.*
- *PO Reilly was assigned to housing conditions from 3:00 p.m. on May 28, 2014 to 08:00 a.m. on May 29, 2014 with PO Maguire. He was dressed in uniform and assigned to a marked van.*

<u>Memo Book</u>

PO Reilly had detailed memo book entries that were consistent with his statement to the CCRB(encl. D1-6).

<u>UF-61 Complaint Report, OLBS Arrest Report, and Criminal Court Complaint</u>

§ 87(2)(a) 160.50

<u>Property Vouchers</u>

Along with a number of personal items vouchered for safe keeping and narcotics for arrest evidence, § 87(2)(b) vehicle was vouchered for safekeeping. The vehicle was owned by Hertz (encl. D15-20).

CCRB Statement

PO Reilly was interviewed at the CCRB on July 10, 2014 (encl. D21-23). § 87(2)(g) [redacted]

PO Reilly opened her driver's side door after asking her repeatedly to step out of the vehicle. § 87(2)(b) attempted to shut the door on PO Reilly, striking his legs. At this point PO Reilly switched places with PO Maguire and went to the passenger side of the vehicle to help push § 87(2) § 87(2)(b) out of the vehicle. PO Reilly did not see § 87(2)(b) bite PO Maguire, but he heard PO Maguire tell her not to bite him. PO Reilly's legs were half in and half out of the vehicle during the struggle. Another male officer, identified by the investigation as PO Dang, arrived, and assisted PO Maguire in removing § 87(2)(b) from the vehicle. PO Maguire and PO Dang handcuffed § 87(2)(b) on the ground. PO Reilly did not learn of a strip-search of § 87(2)(b) being authorized, nor did he know that § 87(2)(b) had been strip-searched. He did not say to § 87(2)(b) nor did he hear said, the word "fuck" or "I don't want to hear your fucking mouth."

Subject Officer: PO MERIBETH ALIX

- § 87(2)(b), *female, Hispanic,* § 87(2)(b) *brown hair, and brown eyes.*
- *On May 28, 2014, PO Alix worked from 3:00 p.m. to 11:35 p.m. with PO Dang and she was assigned to the Robbery Auto. PO Alix was dressed in uniform and was assigned to a marked motor vehicle.*

Memo Book

PO Alix did not have an entry in her memo book regarding this incident (encl. F1-3).

CCRB Statement

PO Alix was interviewed at the CCRB on October 2, 2014 (encl. F4-5). § 87(2)(g) [redacted]

When PO Alix and PO Dang arrived, PO Alix observed either PO Maguire or PO Reilly, she did not recall who, at the driver's side door of § 87(2) § 87(2)(b) vehicle telling her to get out multiple times. PO Alix stepped out of her vehicle at about the same time as PO Dang. She did not see how § 87(2) § 87(2)(b) was taken out of the vehicle, but by the time that PO Alix stepped out of the police vehicle, § 87(2)(b) was out of her vehicle. PO Alix did not recall if § 87(2)(b) was on the ground or standing. From the time that PO Alix arrived to the time that she observed § 87(2) § 87(2)(b) out of her vehicle was less than one minute. PO Alix and PO Dang went to the vehicle at the same time. PO Alix did not know if PO Maguire and PO Reilly used pepper spray during the incident. She did not smell or feel pepper spray and she did not recall if she observed the effects of pepper spray on § 87(2)(b) PO Alix observed § 87(2)(b) crying but she did not recall if § 87(2)(b)s eyes were red. PO Alix did not see her with any injuries nor did she learn that § 87(2) § 87(2)(b) was injured at any point in the interaction. PO Alix did not see § 87(2)(b) handcuffed and could not recall who transported her to the stationhouse. She did not hear any officer say, "Shut the fuck up. What are you going to do? We are the fucking cops. You bit me." She did not see PO Dang interact with or assist the other officers in handcuffing § 87(2)(b) PO Alix did not know if there had been any struggle with § 87(2)(b) before she arrived and none of the officers told her of any struggle.

PO Alix returned to the stationhouse. PO Reilly and PO Maguire were at the desk with § 87(2) § 87(2)(b) Someone, she did not know who, told her that § 87(2)(b) put drugs in her bra that were already recovered. § 87(2)(b) did not know who recovered the item from § 87(2)(b)s bra. At the stationhouse she was instructed by a commanding officer to strip-search § 87(2)(b) PO Alix did not know why she was instructed to strip-search § 87(2)(b) She did not recall which officer commanded her to strip-search § 87(2)(b) PO Alix took § 87(2)(b) to a private cell in

the back of the stationhouse alone. She patted the outside of § 87(2)(b) s clothes. She instructed § 87(2)(b) to remove all of her clothes and to squat and cough. No additional contraband was found as a result of the strip search. § 87(2)(b) put her clothes back on, and PO Alix placed her in a holding cell. PO Alix did not say, nor did she hear said, "I don't want to hear your fucking mouth."

Subject Officer: LT JOHN FODER

- § 87(2)(b) *male, white,* § 87(2)(b) *blond hair, and blue eyes.*
- *On the date of incident, LT Foder was assigned as the special operations lieutenant from 12:00 p.m. to 11:35 p.m. he was not assigned a partner, he was dressed in uniform, and he was assigned to an unmarked vehicle.*

Memo Book

LT Foder did not have any memo book entries for this incident (encl. H1-3).

CCRB Statement

LT Foder was interviewed at the CCRB on October 29, 2014 (encl. H4-5). § 87(2)(g)

PO Maguire and PO Reilly brought § 87(2)(b) who was under arrest, into the stationhouse. Either PO Maguire or PO Reilly explained to LT Foder that they had apprehended § 87(2)(b) for § 87(2)(b). They further informed him that § 87(2)(b) resisted arrest and that she was pepper sprayed. One of the officers informed LT Foder that § 87(2)(b) at the time of her arrest, shoved small objects into her bra and panties. LT Foder verified the arrest, which consisted of hearing the officers' story and insuring that her alleged offenses were something that fell within the category of arrestable offenses. LT Foder did not recall if any officer asked to strip-search § 87(2)(b) and he did not recall if he authorized a strip-search. LT Foder believed that based on the facts communicated to him from PO Maguire and PO Reilly, § 87(2)(b) could have legally been strip-searched, but he did not have a specific recollection of authorizing the strip-search. He did not recall who lodged § 87(2)(b) in the cell and he did not hear any officer tell her that she "did not want to hear her fucking mouth."

Subject Officer: PO VIET DANG

- § 87(2)(b) *male, Asian,* § 87(2)(b) *black hair, and brown eyes.*
- *On the date of incident, PO Dang was assigned to the robbery automobile from 3:00 p.m. to 11:35 p.m. with PO Alix. He was dressed in uniform and assigned to a marked motor vehicle.*

Memo Book

PO Dang did not have any memo book entries in regards to this case (encl. G1-2).

CCRB Statement

PO Dang was interviewed at the CCRB on October 22, 2014 (encl. G3-4). § 87(2)(g)

By the time that PO Dang arrived at the incident location, after being called to go to the location by PO Maguire or PO Reilly, § 87(2)(b) was already in handcuffs. He did not know what force was used to apprehend § 87(2)(b) he did not know if pepper spray was used, and he did not know if § 87(2)(b) had been punched. PO Dang did not see any injuries on § 87(2)(b) and he did not see the search of § 87(2)(b) PO Dang and PO Alix went to the 50th Precinct

stationhouse after. PO Dang did not know if § 87(2)(b) had been strip-searched at the stationhouse. He did not hear any officer use the word "fuck" during the incident.

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Arrest Photograph

The arrest photograph for § 87(2)(b)s arrest does not show any visible injuries (encl. I5).

Command Log

The arrest stamp for this incident notes that § 87(2)(b) is in "good" physical condition. It notes that LT Foder was the supervising/verifying officer. There is no notation of a strip-search (encl. I4).

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 25, 2014 with regard to the incident (encl. J6).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B5).

Subject Officers CCRB History

- PO Brendan Reilly has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. B3).
- PO Meribeth Alix has been a member of the service for two years and there are no substantiated CCRB allegations against her (encl.B4).
- PO Corey Maguire has been a member of the service for two years and there are no substantiated CCRB allegations against him. This is the first CCRB allegation pled against him (encl. B2).
- PO Viet Dang has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. B1).
- LT John Foder has been a member of the service for 21 years and there are no substantiated CCRB allegations against him (encl. B5).

Conclusion

Identification of Subject Officers

PO Reilly and PO Maguire acknowledged interacting with § 87(2)(b)

LT Foder acknowledged verifying the arrest and he acknowledged hearing that § 87(2)(b) shoved items into her undergarments. He acknowledged that he would have authorized the strip search of § 87(2)(b) given this recollection. § 87(2)(g)

PO Alix acknowledged responding to the incident location and strip-searching § 87(2)(b) at the stationhouse. § 87(2)(g)

PO Dang acknowledged that he responded to this incident. § 87(2)(g)

Allegations not Pled

§ 87(2)(b) s vehicle was vouchered as a result of her arrest. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A—Force: PO Brendan Reilly used physical force against § 87(2)(b)
Allegation B—Force: PO Corey Maguire used pepper spray against § 87(2)(b)
Allegation C—Force: PO Corey Maguire used physical force against § 87(2)(b)

It is not disputed that PO Reilly attempted to push and pull § 87(2)(b) out of the vehicle after she was under arrest and refused to get out of the vehicle of her own volition. It is not disputed that § 87(2)(b) resisted stepping out of the vehicle, held on to the steering wheel to keep from being taken out of the vehicle, bit PO Maguire, and handcuffed herself to the steering wheel. It is not disputed that PO Maguire pepper sprayed § 87(2)(b)

§ 87(2)(b) acknowledged that she had turned on the vehicle and turned it off during the struggle and that she handcuffed herself to the steering wheel before she was pepper sprayed. § 87(2)(b) alleged that PO Maguire punched her in the side of her head twice after pepper spraying her and after she handcuffed herself to the steering wheel. None of the officers interviewed acknowledged that PO Maguire punched § 87(2)(b)

Patrol Guide Procedure 203-11 (encl. A1-2) Officers are to use the minimal amount of force necessary in order to apprehend a perpetrator. *Patrol Guide Procedure 212-95* (encl. A3-6) Officers are permitted to use OC spray when they have a reasonable belief that its use will be necessary to effect an arrest of a resisting individual or when its use will be necessary to protect oneself or others from physical harm.

§ 87(2)(g) . It is therefore recommended that **Allegations A**, **B**, and **C** be **exonerated**.

Allegation D—Discourtesy: PO Corey Maguire spoke discourteously to § 87(2)(b)
Allegation F—Discourtesy: PO Meribeth Alix spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that PO Maguire said to her, "Shut the fuck up. We are the cops. What are you going to do? You bit me." § 87(2)(b) also alleged that PO Alix said to her, "I don't want to hear your fucking mouth."

None of the officers interviewed acknowledged saying or hearing an officer use the word "fuck."

§ 87(2)(g) It is therefore recommended that **Allegations D** and **F** be **unsubstantiated**.

Allegation E—Abuse of Authority: LT John Foder authorized the strip search of § 87(2)(b)

It is undisputed that § 87(2)(b) shoved an item in to her bra, which was later determined to be narcotics, she resisted arrest, and she had numerous different types of narcotics found in different places in her vehicle and on her person. It is also undisputed that PO Alix strip-searched § 87(2)(b) in a private area of the 50th Precinct station house. LT Foder stated that he verified the arrest and was informed by either PO Maguire or PO Reilly that § 87(2)(b) hid an item in her bra or panties. LT Foder did not specifically recall if he had authorized a strip search of § 87(2)(b) but he acknowledged that he would have authorized one given the facts that he did recall.

Patrol Guide Procedure 208-05 (encl. A7-9) A supervising officer who authorizes a strip search is required to have reasonable suspicion that an individual is concealing additional contraband that could not be discovered by previous search methods.

§ 87(2)(g) . It is therefore recommended the **Allegation E** be **exonerated.**

§ 87(2)(g), § 87(4-b)

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§ 87(2)(g), § 87(4-b) [redacted]

Team: ___One____

Investigator: _____ _Lily Carayannis_ December 3, 2014
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date